IN THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL
BENCH AT CHANDIGARH

CP (CAA) No. 24/Chd/Hry/2023
(2nd Motion)

Under Sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromise, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

ALANKRIT ESTATES LIMITED

with its registered office at:
SHOPPING MALL, DLF QUTAB ENCLAVE, PHASE-I
GURUGRAM-122002, HARYANA
CIN: U45202HR1984PLC018955
PAN: AAECA0350J

... PETITIONER COMPANY NO.1 / TRANSFEROR COMPANY NO. 1

AND

DLF ESTATE DEVELOPERS LIMITED

with its registered office at:
2ND FLOOR, DIF GATEWAY TOWER, R- BLOCK, DLF CITY, PHASE-III,
GURUGRAM - 122 002, HARYANA
CIN: U74999HR1989PLC107716
PAN: AACCD0038J

... PETITIONER COMPANY NO.2 / TRANSFEROR COMPANY NO. 2

AND

KRITIMAAN BUILDERS LIMITED

with its registered office at:
SHOPPING MALL, 3RD FLOOR, ARJUN MARG, DLF CITY, PHASE-I,
GURUGRAM - 122 002, HARYANA
CIN: U45201HR1991PLC034887
PAN: AAACK0167D

... PETITIONER COMPANY NO.3 / TRANSFEROR COMPANY NO. 3

AND

TIBERIAS DEVELOPERS LIMITED

with its registered office at:
SHOPPING MALL, 1ST FLOOR, ARJUN MARG, DIF CITY, PHASE - I,
GURUGRAM-122 002, HARYANA
CIN: U70100HR2005PLC082942
PAN: AACCD2389J

... PETITIONER COMPANY NO.4 / TRANSFEROR COMPANY NO. 4

AND

UJAGAR ESTATES LIMITED

with its registered office at:
SHOPPING MALL, 3RD FLOOR, ARJUN MARG, DIF CITY, PHASE - I,
GURUGRAM-122 002, HARYANA
CIN: U45201 HR1991PLC034886
PAN: AAACU0404D

... PETITIONER COMPANY NO.5 /TRANSFEROR COMPANY NO. 5

AND

DLF UTILITIES LIMITED

with its registered office at:
SHOPPING MALL, 3RD FLOOR, ARJUN MARG, DIF CITY, PHASE - I,
GURUGRAM-122 002, HARYANA
CIN: U01300HR1989PLC030646
PAN: AAACN3199A

... PETITIONER COMPANY NO.6/TRANSFEREE COMPANY

Order delivered on: 21.07.2023

Coram: HON'BLE MR. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

Present : -

For the Petitioner Companies:
1. Mr. U.K. Chaudhary, Senior Advocate
2. Ms. Manisha Chaudhary, Advocate
3. Mr. Mansumyer Singh, Advocate
4. Mr. Pulkit Goyal, Advocate

ORDER

This is a Joint Second Motion Petition filed by Petitioner Companies namely; **ALANKRIT ESTATES LIMITED** (referred to as "Petitioner Company No.1/ Transferor Company No.1") and **DLF ESTATE DEVELOPERS LIMITED** (referred to as "Petitioner Company No.2/ Transferor Company No.2"), and **KIRTIMAAN BUILDERS LIMITED** (referred to as "Petitioner Company No.3/ Transferor Company No.3"), and **TIBERIAS DEVELOPERS LIMITED** (referred to as "Petitioner Company No.4/ Transferor Company No.4"), and **UJAGAR ESTATES LIMITED** (referred to as "Petitioner Company No. 5/Transferor Company No.5"), and **DLF UTILITIES LIMITED** (referred to as "Petitioner Company No. 6/ Transferee Company") under Section 230-232 of the Companies Act, 2013 (the Act) and other applicable provisions of the Act read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 (the Rules) in relation to the Scheme of Amalgamation between the respective companies.

2. In its petition, the petitioner company has prayed *inter alia* to issue directions in relation to publication in the press and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The first motion application seeking directions for convening/dispensing with the requirement of the meetings of its Equity Shareholders, Debenture Holders, Secured and unsecured creditor of the Applicant Companies was filed before this Tribunal by Company Application No.12/Chd/Hry/2023 and based on such application necessary directions were issued on 08.06.2023. In the order dated 08.06.2023, the meetings of its Equity Shareholders, Secured and Unsecured Creditors and Debenture Holders of Applicant Company Nos.1,3 and 5 was dispensed with for the reasons mentioned in the aforesaid order.

4. The notice of hearing will be advertised in “The Financial Express ” (English) and “Jan Satta” (Hindi), both in Delhi NCR Edition not less than 10 days before the next date fixed for hearing.

5. In addition to the above public notice, the Petitioner Company shall serve the notice of the petition on the following Authorities namely, (i) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (ii) concerned Registrar of Companies; and (iii) the Official Liquidator (attached to Punjab and Haryana High Court) (iv) Income Tax Department through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E Chandigarh with copy of this petition by speed post immediately.

6. The petitioner-companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the ‘Scheme’ contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the ‘Scheme’ on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner company shall also file an affidavit stating the objections received from public pursuant to the publication of notice of hearing in the newspapers.

7. The next date of hearing of the petition shall be on 13.10.2023 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

8. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed ‘Scheme’.

Sd/- Sd/-

(Subrata Kumar Dash)
Member (Technical)

(Harnam Singh Thakur)
Member (Judicial)

July 21, 2023
SA/PRF